

Smt. Nagamani @ Geetha M.K vs Sri. Ramu V on 13 September, 2023

Author: G.Narendar

Bench: G.Narendar

- 1 -

NC: 2023:KHC:33253-DB
MFA No.5667 of 2022

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 13TH DAY OF SEPTEMBER, 2023
PRESENT

THE HON'BLE MR. JUSTICE G.NARENDAR

AND

THE HON'BLE MR. JUSTICE VIJAYKUMAR A. PATIL

MISCELLANEOUS FIRST APPEAL NO.5667 OF 2022 (FC)
BETWEEN:

1. SMT. NAGAMANI @ GEETHA M.K.
D/O KEMPEGOWDA
AGED ABOUT 32 YEARS
MENASIGANAHALLI VILLAGE
VIRUPAKSHIPURA HOBLI
CHANNAPATNA TALUK
RAMANAGARA DIST 562138.

Digitally
signed by
RUPA V

Location:
HIGH
COURT OF
KARNATAKA

(BY SRI. B.M. LOKESH, ADV.,)

...APPELLANT

AND:

1. SRI. RAMU .V
S/O LATE VENKATESH
AGED ABOUT 37 YEARS
NO.35, 7TH A CROSS
CHANNAMAM TEMPLE ROAD OPP
FCI, VIJINAPURA, NAEAR GULSON
ENTERPRISES, SHESHAPPA LAYOUT
DODORAVANINAGARA, BENGALURU 560016

...RESPONDENT

(BY SRI. RANGASWAMY M.T. ADV.,)

THIS MFA IS FILED U/S 19(1) OF FAMILY COURTS ACT
AGAINST THE JUDGMENT AND DECREE DATED 30.11.2021
PASSED IN MC NO.6475/2019 ON THE FILE OF THE PRL.

JUDGE, FAMILY COURT, BENGALURU, ALLOWING THE
PETITION FILED UNDER SECTION 13(1)(ia) AND (ib) OF THE
HINDU MARRIAGE ACT, 1955.

-2-

NC: 2023:KHC:33253-DB
MFA No.5667 of 2022

THIS APPEAL COMING ON FOR ADMISSION, THIS DAY,
VIJAYKUMAR A. PATIL J., DELIVERED THE FOLLOWING:

JUDGMENT

This appeal is filed under Section 19(1) of the Family Courts Act, 1984 against the judgment dated 30.11.2021 passed in M.C.No.6475/2019 by the Principal Judge, Family Court, Bengaluru, (hereinafter referred to as, 'the Family Court') by which the petition filed by the respondent - husband under Section 13(1)(ia) & (ib) of the Hindu Marriage Act, 1955 seeking dissolution of marriage on the ground of cruelty and desertion was allowed.

2. This Court vide order dated 27.01.2023 has referred the dispute to Bengaluru Mediation Centre for exploring the possibility of amicable settlement. The Bengaluru Mediation Centre has reported stating that both the parties failed to appear for follow up, hence, the matter was not settled.

3. Learned counsel for the appellant and the learned counsel for the respondent submit that at the NC: 2023:KHC:33253-DB intervention of elders and well-wishers, the appellant-wife and the respondent-husband, in the conciliation, have arrived at an amicable settlement of the dispute and accordingly they have filed a joint memo.

3. The terms of the joint memo read as under:

"a) The Appellant agreed to receive total permanent alimony of Rs.11,00,000/- (Rupees Eleven Lakhs Only) from the respondent as full and final settlement and the appellant gave the consent for divorce judgment passed by the Prl Family Court at Bangalore in MC No.6475/2019 dated 30-11-2021 and the appellant already received Rs.2,00,000/-

(Rupees Two Lakhs Only) the part of permanent alimony by way of DD No.046902 from the respondent, today the appellant received the amount of Rs.4,00,000/- (Rupees Four Lakhs only) by way of DD No.015042, dated 10-08-2023 drawn on HDFC Bank, B Narayanapura, Bangalore-560016.

b) The appellant also filed the case before the Prl. Civil Judge and JMFC at Chennapattana in Crl.Misc.No.564/2023 seeking maintenance on her behalf and also on behalf of the her daughter Kum. Kushika, in view of the settlement arrived between the appellant and respondent the appellant agreed to withdraw the said case, while withdrawing the said case by the appellant the respondent

agreed to give Rs.5,00,000/- (Rupees Five Lakhs Only) in favour of the appellant by way of DD before the Hon'ble Prl. Civil Judge and JMFC at NC: 2023:KHC:33253-DB Chennapattana, the said amount as full and final settlement.

c) The appellant and respondent hereby withdraw the allegations made each other in the cases and they are voluntarily entered in to above compromise without any force or fear, the present settlement is full and final settlement and the same is without any compulsion and out of free will and volition and that both the parties undertake not to initiate any further proceedings each other for what so ever reasons.

Wherefore this Hon'ble Court be pleased to permit the appellant and respondent to compromise the above case and dispose of the above appeal in terms of compromise as per this joint memo in the interest of justice and equity."

4. We have gone through the terms of the joint memo, they are not opposed to public policy and nor opposed to law. The learned counsels for the parties respectively identify the appellant-wife and the respondent-husband, who are present before the Court.

The parties to the proceedings express that they have entered the compromise on their own volition, they have understood the terms of the joint memo and they have affixed their signature.

NC: 2023:KHC:33253-DB

5. The joint memo is placed on record.

6. The appeal is disposed of in terms of the joint memo by confirming the judgment and decree dated 30.11.2021 passed in M.C.No.6475/2019 by the Principal Judge, Family Court, Bengaluru.

Registry is directed to draw the decree accordingly.

No order as to costs.

Sd/-

JUDGE Sd/-

JUDGE BSR